

SHORT FORM ORDER

INDEX No. 600371/2021  
 CAL. No. 202400109OT

SUPREME COURT - STATE OF NEW YORK  
 I.A.S. PART 50 - SUFFOLK COUNTY

***PRESENT:***

Hon. FRANK A. TINARI  
 Justice of the Supreme Court

MOTION DATE 6/21/24  
 ADJ. DATE 9/23/25  
 Mot. Seq. # 003 MD  
 Mot. Seq. # 004 MD

DIANE C. DESOUSA and THOMAS E.  
 DESOUSA,

Plaintiff,

- against -

RICHARD A. CALVAGNO II and PATRICK J.  
 KARCHER,

Defendants.

JOHN N. CUOMO, ESQ.  
 Attorney for Plaintiff Diane DeSousa  
 11 Fern Drive  
 Commack, New York 11725

JASON M. BARBARA & ASSOCIATES, P.C.  
 Attorney for Defendant Richard A. Calvagno II  
 3 Dakota Drive, Suite 300  
 New Hyde Park, New York 11042

WARSHAW BURSTEIN, LLP  
 Attorney for Defendant Patrick J. Karcher  
 575 Lexington Avenue  
 New York, New York 10022

Upon the following papers read on these motions for summary judgment, etc.: Notice of Motion/Order to Show Cause and supporting papers by defendant Karcher, filed May 29, 2024; Notice of Motion and supporting papers by plaintiffs, filed May 31, 2024; Answering Affidavits and supporting papers by plaintiffs, filed June 20, 2024; by defendant Calvagno, filed June 19, 2024; Replying Affidavits and supporting papers by defendant Karcher, filed June 25, 2024; by plaintiffs, filed June 25, 2024; Other \_\_; it is

***ORDERED*** that these motions are consolidated for purposes of this determination; and it is

***ORDERED*** that the motion by defendant Patrick J. Karcher for an order pursuant to CPLR 3212, granting summary judgment dismissing the complaint as against him, is denied; and is further

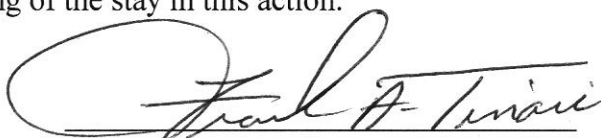
***ORDERED*** that the motion by plaintiffs for, inter alia, an order pursuant to CPLR 3212, granting summary judgment dismissing the counterclaims interposed by defendant Richard A. Calvagno II, is denied.

DeSousa v Calvagno  
Index No. 600371/2021  
Page 2

Where a party dies during the pendency of an action, such death divests the court of jurisdiction until a personal representative is appointed for the decedent's estate and is properly substituted in the action (see *Lee v Leeds, Morelli & Brown, P.C.*, 233 AD3d 1070, 224 NYS3d 478 [2d Dept 2024]; *Manto v Cerbone*, 71 AD3d 1099, 898 NYS2d 182 [2d Dept 2010] ). Any determination rendered prior to such substitution generally will be deemed a nullity (*Singer v Riskin*, 32 AD3d 839, 821 NYS2d 120 [2d Dept 2006]). The death of a party also terminates an attorney's authority to act on behalf of the deceased client (see *Pierre v King*, 240 AD3d 531, 239 NYS3d 186 [2d Dept 2025]; *Vapnersh v Tabak*, 131 AD3d 472, 15 NYS3d 131 [2d Dept 2015]; *Hyman v Booth Mem. Hosp.*, 306 AD2d 438, 761 NYS3d 306 [2d Dept 2003]). Here, the court marked this action "stayed" on July 29, 2024, after having been advised of the death of Thomas E. DeSousa. To date, no substitution for the decedent has been effected.

Accordingly, the motion by defendant Patrick J. Karcher and the motion by plaintiffs are denied without prejudice to timely renewal upon the lifting of the stay in this action.

Dated: November 13, 2025



Frank A. Tinari, J.S.C.

\_\_\_\_ FINAL DISPOSITION      X   NON-FINAL DISPOSITION